

(i) **ADULT ATTENDANT.**—A child testifying at or attending a judicial proceeding shall have the right to be accompanied by an adult attendant to provide emotional support to the child. The court, at its discretion, may allow the adult attendant to remain in close physical proximity to or in contact with the child while the child testifies. The court may allow the adult attendant to hold the child's hand or allow the child to sit on the adult attendant's lap throughout the course of the proceeding. An adult attendant shall not provide the child with an answer to any question directed to the child during the course of the child's testimony or otherwise prompt the child. The image of the child attendant, for the time the child is testifying or being deposed, shall be recorded on videotape.

(j) **SPEEDY TRIAL.**—In a proceeding in which a child is called to give testimony, on motion by the attorney for the Government or a guardian ad litem, or on its own motion, the court may designate the case as being of special public importance. In cases so designated, the court shall, consistent with these rules, expedite the proceeding and ensure that it takes precedence over any other. The court shall ensure a speedy trial in order to minimize the length of time the child must endure the stress of involvement with the criminal process. When deciding whether to grant a continuance, the court shall take into consideration the age of the child and the potential adverse impact the delay may have on the child's well-being. The court shall make written findings of fact and conclusions of law when granting a continuance in cases involving a child.

(k) **EXTENSION OF CHILD STATUTE OF LIMITATIONS.**—No statute of limitation that would otherwise preclude prosecution for an offense involving the sexual or physical abuse of a child under the age of 18 years shall preclude such prosecution before the child reaches the age of 25 years. If, at any time that a cause of action for recovery of compensation for damage or injury to the person of a child exists, a criminal action is pending which arises out of the same occurrence and in which the child is the victim, the civil action shall be stayed until the end of all phases of the criminal action and any mention of the civil action during the criminal proceeding is prohibited. As used in this subsection, a criminal action is pending until its final adjudication in the trial court.

(l) **TESTIMONIAL AIDS.**—The court may permit a child to use anatomical dolls, puppets, drawings, mannequins, or any other demonstrative device the court deems appropriate for the purpose of assisting a child in testifying.

(Added Pub. L. 101-647, title II, § 225(a), Nov. 29, 1990, 104 Stat. 4798.)

REFERENCES IN TEXT

The Federal Rules of Evidence, referred to in subsec. (c)(1), are set out in the Appendix to Title 28, Judiciary and Judicial Procedure.

The Federal Rules of Criminal Procedure, referred to in subsec. (f), are set out in the Appendix to this title.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 403 of this title.

CHAPTER 224—PROTECTION OF WITNESSES

Sec.
3526. Cooperation of other Federal agencies and State governments; reimbursement of expenses.

AMENDMENTS

1990—Pub. L. 101-647, title XXXV, § 3581, Nov. 29, 1990, 104 Stat. 4929, substituted "State governments; reimbursement of expenses" for "State governments" in item 3526.

§ 3521. Witness relocation and protection

[See main edition for text of (a)]

(b)(1) In connection with the protection under this chapter of a witness, a potential witness, or an immediate family member or close associate of a witness or potential witness, the Attorney General shall take such action as the Attorney General determines to be necessary to protect the person involved from bodily injury and otherwise to assure the health, safety, and welfare of that person, including the psychological well-being and social adjustment of that person, for as long as, in the judgment of the Attorney General, the danger to that person exists. The Attorney General may, by regulation—

[See main edition for text of (A) to (H)]

The Attorney General shall establish an accurate, efficient, and effective system of records concerning the criminal history of persons provided protection under this chapter in order to provide the information described in subparagraph (G).

[See main edition for text of (2) and (3); (c)]

(d) [See main edition for text of (1) and (2)]

(3) The Attorney General may delegate the responsibility initially to authorize protection under this chapter only to the Deputy Attorney General, to the Associate Attorney General, to the Assistant Attorney General in charge of the Criminal Division of the Department of Justice, to the Assistant Attorney General in charge of the Civil Rights Division of the Department of Justice (insofar as the delegation relates to a criminal civil rights case), and to one other officer or employee of the Department of Justice.

[See main edition for text of (e) and (f)]

(As amended Pub. L. 101-647, title XXXV, § 3582, Nov. 29, 1990, 104 Stat. 4929.)

AMENDMENTS

1990—Subsec. (b)(1). Pub. L. 101-647, § 3582(1), inserted "(G)" after "subparagraph" in last sentence.

Subsec. (d)(3). Pub. L. 101-647, § 3582(2), inserted "the" before "Civil Rights Division".

CHAPTER 227—SENTENCES

SUBCHAPTER A—GENERAL PROVISIONS

§ 3551. Authorized sentences

(a) **IN GENERAL.**—Except as otherwise specifically provided, a defendant who has been found

guilty of an offense described in any Federal statute, including sections 13 and 1153 of this title, other than an Act of Congress applicable exclusively in the District of Columbia or the Uniform Code of Military Justice, shall be sentenced in accordance with the provisions of this chapter so as to achieve the purposes set forth in subparagraphs (A) through (D) of section 3553(a)(2) to the extent that they are applicable in light of all the circumstances of the case.

[See main edition for text of (b) and (c)]

(As amended Pub. L. 101-647, title XVI, § 1602, Nov. 29, 1990, 104 Stat. 4843.)

AMENDMENTS

1990—Subsec. (a). Pub. L. 101-647 inserted “including sections 13 and 1153 of this title,” after “any Federal statute,”.

EFFECTIVE DATE; SAVINGS PROVISION

[See main edition for text of section 235 of Pub. L. 98-473]

[Pub. L. 101-650, title III, § 316, Dec. 1, 1990, 104 Stat. 5115, provided that: “For the purposes of section 235(b) of Public Law 98-473 [set out above] as it relates to chapter 311 of title 18, United States Code, and the United States Parole Commission, each reference in such section to ‘five years’ or a ‘five-year period’ shall be deemed a reference to ‘ten years’ or a ‘ten-year period’, respectively.”]

ACT REFERRED TO IN OTHER SECTIONS

The Sentencing Reform Act of 1984 is referred to in title 16 section 460ddd.

§ 3552. Presentence reports

[See main edition for text of (a) to (c)]

(d) **DISCLOSURE OF PRESENTENCE REPORTS.**—The court shall assure that a report filed pursuant to this section is disclosed to the defendant, the counsel for the defendant, and the attorney for the Government at least ten days prior to the date set for sentencing, unless this minimum period is waived by the defendant. The court shall provide a copy of the presentence report to the attorney for the Government to use in collecting an assessment, criminal fine, forfeiture or restitution imposed.

(As amended Pub. L. 101-647, title XXXVI, § 3625, Nov. 29, 1990, 104 Stat. 4965.)

AMENDMENTS

1990—Subsec. (d). Pub. L. 101-647 inserted at end “The court shall provide a copy of the presentence report to the attorney for the Government to use in collecting an assessment, criminal fine, forfeiture or restitution imposed.”

EFFECTIVE DATE OF 1990 AMENDMENT

Amendment by Pub. L. 101-647 effective 180 days after Nov. 29, 1990, see section 3631 of Pub. L. 101-647, set out as an Effective Date note under section 3001 of Title 28, Judiciary and Judicial Procedure.

§ 3559. Sentencing classification of offenses

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 3154 of this title; title 49 App. section 1472.

SUBCHAPTER B—PROBATION

§ 3562. Imposition of a sentence of probation

[See main edition for text of (a)]

(b) **EFFECT OF FINALITY OF JUDGMENT.**—Notwithstanding the fact that a sentence of probation can subsequently be—

[See main edition for text of (1)]

(2) corrected pursuant to the provisions of rule 35 of the Federal Rules of Criminal Procedure and section 3742; or

[See main edition for text of (3)]

a judgment of conviction that includes such a sentence constitutes a final judgment for all other purposes.

(As amended Pub. L. 101-647, title XXXV, § 3583, Nov. 29, 1990, 104 Stat. 4930.)

REFERENCES IN TEXT

The Federal Rules of Criminal Procedure, referred to in subsec. (b)(2), are set out in the Appendix to this title.

AMENDMENTS

1990—Subsec. (b)(2). Pub. L. 101-647 inserted “of the Federal Rules of Criminal Procedure” after “rule 35”.

§ 3563. Conditions of probation

(a) **MANDATORY CONDITIONS.**—The court shall provide, as an explicit condition of a sentence of probation—

[See main edition for text of (1) to (3)]

If the court has imposed and ordered execution of a fine and placed the defendant on probation, payment of the fine or adherence to the court-established installment schedule shall be a condition of the probation.

(b) **DISCRETIONARY CONDITIONS.**—The court may provide, as further conditions of a sentence of probation, to the extent that such conditions are reasonably related to the factors set forth in section 3553(a)(1) and (a)(2) and to the extent that such conditions involve only such deprivations of liberty or property as are reasonably necessary for the purposes indicated in section 3553(a)(2), that the defendant—

[See main edition for text of (1) and (2)]

(3) make restitution to a victim of the offense under sections 3663 and 3664 (but not subject to the limitations of section 3663(a));

[See main edition for text of (4) to (19)]

(20) remain at his place of residence during nonworking hours and, if the court finds it appropriate, that compliance with this condition be monitored by telephonic or electronic signaling devices, except that a condition under this paragraph may be imposed only as an alternative to incarceration;

(21) comply with the terms of any court order or order of an administrative process pursuant to the law of a State, the District of Columbia, or any other possession or terri-

tory of the United States, requiring payments by the defendant for the support and maintenance of a child or of a child and the parent with whom the child is living; or

(22) satisfy such other conditions as the court may impose.

[See main edition for text of (c) and (d)]

(As amended Pub. L. 101-647, title XXXV, § 3584, Nov. 29, 1990, 104 Stat. 4930; Pub. L. 102-521, § 3, Oct. 25, 1992, 106 Stat. 3404.)

AMENDMENTS

1992—Subsec. (b)(21), (22). Pub. L. 102-521 added par. (21) and redesignated former par. (21) as (22).

1990—Subsec. (a). Pub. L. 101-647, § 3584(1), substituted “defendant” for “defendent” in last sentence.

Subsec. (b)(3). Pub. L. 101-647, § 3584(2), substituted “under sections 3663 and 3664” for “pursuant to the provisions of section 3663 and 3664” and “section 3663(a)” for “3663(a)”.

§ 3565. Revocation of probation

(a) **CONTINUATION OR REVOCATION.**—If the defendant violates a condition of probation at any time prior to the expiration or termination of the term of probation, the court may, after a hearing pursuant to Rule 32.1 of the Federal Rules of Criminal Procedure, and after considering the factors set forth in section 3553(a) to the extent that they are applicable—

(1) continue him on probation, with or without extending the term or modifying or enlarging the conditions; or

[See main edition for text of (2)]

Notwithstanding any other provision of this section, if a defendant is found by the court to be in possession of a controlled substance, thereby violating the condition imposed by section 3563(a)(3), the court shall revoke the sentence of probation and sentence the defendant to not less than one-third of the original sentence.

[See main edition for text of (b) and (c)]

(As amended Pub. L. 101-647, title XXXV, § 3585, Nov. 29, 1990, 104 Stat. 4930.)

AMENDMENTS

1990—Subsec. (a)(1). Pub. L. 101-647 substituted “or modifying” for “of modifying”.

SUBCHAPTER C—FINES

Sec.

3572. Imposition of a sentence of fine and related matters.

3573. Petition of the Government for modification or remission.

AMENDMENTS

1990—Pub. L. 101-647, title XXXV, § 3586(1), Nov. 29, 1990, 104 Stat. 4930, which directed the insertion of “and related matters” after “fines” in item 3572, was executed by making the insertion after “fine” to reflect the probable intent of Congress.

Pub. L. 101-647, title XXXV, § 3586(2), Nov. 29, 1990, 104 Stat. 4930, substituted “remission” for “revision” in item 3573.

SUBCHAPTER C—FINES

§ 3571. Sentence of fine

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in sections 19, 1031 of this title; title 42 section 2273.

§ 3572. Imposition of a sentence of fine and related matters

[See main edition for text of (a) and (b)]

(c) **EFFECT OF FINALITY OF JUDGMENT.**—Notwithstanding the fact that a sentence to pay a fine can subsequently be—

(1) modified or remitted under section 3573;

(2) corrected under rule 35 of the Federal Rules of Criminal Procedure and section 3742; or

(3) appealed and modified under section 3742;

a judgment that includes such a sentence is a final judgment for all other purposes.

[See main edition for text of (d) to (i)]

(As amended Pub. L. 101-647, title XXXV, § 3587, Nov. 29, 1990, 104 Stat. 4930.)

REFERENCES IN TEXT

The Federal Rules of Criminal Procedure, referred to in subsec. (c)(2), are set out in the Appendix to this title.

AMENDMENTS

1990—Subsec. (c)(2). Pub. L. 101-647 inserted “of the Federal Rules of Criminal Procedure” after “rule 35”.

SUBCHAPTER D—IMPRISONMENT

§ 3582. Imposition of a sentence of imprisonment

[See main edition for text of (a)]

(b) **EFFECT OF FINALITY OF JUDGMENT.**—Notwithstanding the fact that a sentence to imprisonment can subsequently be—

(1) modified pursuant to the provisions of subsection (c);

(2) corrected pursuant to the provisions of rule 35 of the Federal Rules of Criminal Procedure and section 3742; or

(3) appealed and modified, if outside the guideline range, pursuant to the provisions of section 3742;

a judgment of conviction that includes such a sentence constitutes a final judgment for all other purposes.

[See main edition for text of (c) and (d)]

(As amended Pub. L. 101-647, title XXXV, § 3588, Nov. 29, 1990, 104 Stat. 4930.)

REFERENCES IN TEXT

The Federal Rules of Criminal Procedure, referred to in subsec. (b)(2), are set out in the Appendix to this title.

AMENDMENTS

1990—Subsec. (b)(2). Pub. L. 101-647 inserted “of the Federal Rules of Criminal Procedure” after “rule 35”.

§ 3583. Inclusion of a term of supervised release after imprisonment

[See main edition for text of (a) to (c)]

(d) **CONDITIONS OF SUPERVISED RELEASE.**—The court shall order, as an explicit condition of supervised release, that the defendant not commit another Federal, State, or local crime during the term of supervision and that the defendant not possess illegal controlled substances. The court may order, as a further condition of supervised release, to the extent that such condition—

[See main edition for text of (1)]

(2) involves no greater deprivation of liberty than is reasonably necessary for the purposes set forth in section 3553(a)(2)(B), (a)(2)(C), and (a)(2)(D); and

[See main edition for text of (3)]

any condition set forth as a discretionary condition of probation in section 3563(b)(1) through (b)(10) and (b)(12) through (b)(20), and any other condition it considers to be appropriate. If an alien defendant is subject to deportation, the court may provide, as a condition of supervised release, that he be deported and remain outside the United States, and may order that he be delivered to a duly authorized immigration official for such deportation.

(e) **MODIFICATION OF CONDITIONS OR REVOCATION.**—The court may, after considering the factors set forth in section 3553(a)(1), (a)(2)(B), (a)(2)(C), (a)(2)(D), (a)(4), (a)(5), and (a)(6)—

[See main edition for text of (1)]

(2) extend a term of supervised release if less than the maximum authorized term was previously imposed, and may modify, reduce, or enlarge the conditions of supervised release, at any time prior to the expiration or termination of the term of supervised release, pursuant to the provisions of the Federal Rules of Criminal Procedure relating to the modification of probation and the provisions applicable to the initial setting of the terms and conditions of post-release supervision;

(3) revoke a term of supervised release, and require the person to serve in prison all or part of the term of supervised release without credit for time previously served on postrelease supervision, if it finds by a preponderance of the evidence that the person violated a condition of supervised release, pursuant to the provisions of the Federal Rules of Criminal Procedure that are applicable to probation revocation and to the provisions of applicable policy statements issued by the Sentencing Commission, except that a person whose term is revoked under this paragraph may not be required to serve more than 3 years in prison if the offense for which the person was convicted was a Class B felony, or more than 2 years in prison if the offense was a Class C or D felony; or

(4) order the person to remain at his place of residence during nonworking hours and, if the court so directs, to have compliance monitored by telephone or electronic signaling de-

vices, except that an order under this paragraph may be imposed only as an alternative to incarceration.

[See main edition for text of (f) and (g)]

(As amended Pub. L. 101-647, title XXXV, § 3589, Nov. 29, 1990, 104 Stat. 4930.)

AMENDMENTS

1990—Subsec. (d)(2). Pub. L. 101-647, § 3589(1), inserted a comma after “3553(a)(2)(B)”.

Subsec. (e)(2) to (5). Pub. L. 101-647, § 3589(2)(A)–(C), struck out “or” at end of par. (2), substituted “; or” for period at end of par. (3), and redesignated par. (5) as (4).

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in sections 3401, 3601, 3663, 4101 of this title; title 28 section 994.

CHAPTER 229—POSTSENTENCE ADMINISTRATION

SUBCHAPTER A—PROBATION

Sec.

3607. Special probation and expungement procedures for drug possessors.

AMENDMENTS

1990—Pub. L. 101-647, title XXXV, § 3590, Nov. 29, 1990, 104 Stat. 4930, substituted “possessors” for “possession” in item 3607.

SUBCHAPTER A—PROBATION

§ 3603. Duties of probation officers

A probation officer shall—

[See main edition for text of (1) to (6)]

(7) keep informed concerning the conduct, condition, and compliance with any condition of probation, including the payment of a fine or restitution of each probationer under his supervision and report thereon to the court placing such person on probation and report to the court any failure of a probationer under his supervision to pay a fine in default within thirty days after notification that it is in default so that the court may determine whether probation should be revoked;

(8)(A) when directed by the court, and to the degree required by the regimen of care or treatment ordered by the court as a condition of release, keep informed as to the conduct and provide supervision of a person conditionally released under the provisions of section 4243 or 4246 of this title, and report such person's conduct and condition to the court ordering release and to the Attorney General or his designee; and

(B) immediately report any violation of the conditions of release to the court and the Attorney General or his designee; and

(9) perform any other duty that the court may designate.

(As amended Pub. L. 102-572, title VII, § 701(a), Oct. 29, 1992, 106 Stat. 4514.)

AMENDMENTS

1992—Pars. (8), (9). Pub. L. 102-572 added par. (8) and redesignated former par. (8) as (9).